

26PR00713 Matter of Edwin R. Harris Trust

County: sonoma

Division: Probate

Hearing date: 2027-01-22

Motion: Petition for Order Confirming Trust Assets

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Petition for Order Confirming Trust Assets

Tentative Ruling: The matter is CONTINUED to Friday, January 22, 2027 at 9:30 a.m. in Department 63 as explained below.

Petitioner has failed to include a proof of service with the petition. Therefore, the Court cannot determine whether necessary parties were properly served. Furthermore, petitioner used the incorrect form for notice of the petition (DE-120 instead of DE-115), which is necessary for Probate Code section 850 petitions. Accordingly, the notice of hearing does not include a description of the subject property, as required by Probate Code section 851(c)(1). The notice and service issues were explained in the Trustee Examiner Notes posted on August 11, 2026 but have not been cured.

If the petitioner can (1) obtain a waiver of notice from the beneficiaries and (2) file a proof service showing service of the petition at least 30 days before the September 24th hearing on all necessary parties, she may file them in advance of the hearing and request to appear at the hearing (in accordance with applicable local rules) to present the waiver and proof of service to the Court, potentially avoiding the continuance.